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States propose bans on common food additives linked to health concerns

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Newly proposed bills in California and New York are putting food additives — the chemicals that manufacturers add to food to act as preservatives or to enhance color, texture or taste — under the microscope.

The state legislators are seeking to prohibit the manufacturing and sale of products containing additives that have been linked to cancer, neurodevelopmental issues and hormone dysfunction. The five additives named in the bills are most commonly found in baked goods, candy and soda and are almost totally banned in food products in Europe. Several health associations, including the Endocrine Society and the American Academy of Pediatrics, have raised concerns about the potential health harms of food additives as a whole.

The bills, if approved, would both go into effect in 2025. The sponsors of the California bill, Assemblyman Jesse Gabriel and Assemblywoman Buffy Wicks, said the restrictions would especially protect children, who are more susceptible than adults to the potential risks.

“Kids eat more, pound for pound,” said Dr. Leonardo Trasande, a professor of pediatrics at NYU Langone Health who specializes in environmental health. “Their developing organs are especially vulnerable.”

WHAT ARE THE ADDITIVES IN THE BILLS?

When deciding which to include, the state legislators, collaborating with the nonprofits Consumer Reports and the Environmental Working Group, looked for additives that were prohibited in Europe and still widely used in the U.S., and where research showed strong evidence of health risks.

“These five were truly the worst of the worst,” said Scott Faber, senior vice president of government affairs at the Environmental Working Group.

Red dye No. 3 is used in nearly 3,000 food products, including icings, nutritional shakes, maraschino cherries and peppermint-, berry- and cherry-flavored candies. It has been shown to cause cancer in animals, which prompted the U.S. Food and Drug Administration to ban its use in cosmetics in 1990. At the time, the agency said it would work to extend the ban to food, but the chemical remains in use today. There are also concerns that it and other synthetic food dyes may contribute to behavioral problems, such as hyperactivity, in children.

Titanium dioxide acts as a whitener, color enhancer and anti-caking agent in thousands of food items. It is present in many candies, as well as baked goods, creamy salad dressings and frozen dairy products, such as cheese pizza and ice cream. A safety assessment conducted by the European Food Safety Authority in 2021 concluded that titanium dioxide damages DNA and can harm the immune system, resulting in its ban in the European Union in 2022.

Brominated vegetable oil serves as an emulsifier in fruit drinks and sodas. Research in rats — including a study published by the FDA in 2022 — suggests that brominated vegetable oil acts as an endocrine disrupter, especially affecting the thyroid hormone. An earlier study found that it can also harm the reproductive system. Because of its potential risks, many large brands, including Coca-Cola and Pepsi, recently stopped using the chemical, but it’s still in some smaller and grocery store beverage brands.

Potassium bromate is primarily found in baked goods, including breads, cookies and tortillas, where it acts as a leavening agent and improves texture. The additive is classified as being “possibly carcinogenic to humans” by the

International Agency for Research on Cancer, based on studies conducted in animals.

Propylparaben is a preservative used in packaged baked goods, particularly pastries and tortillas. It is also present in many cosmetics and personal-care products. Numerous studies, in humans and animals, indicate that propylparaben acts as an endocrine disrupter and affects male and female reproductive health.

“If you need to start somewhere, these five are great,” said Dr. Sheela Sathyanarayana, a professor of pediatrics at the University of Washington who researches endocrine disrupters.

HOW DOES THE FDA REGULATE THESE ADDITIVES?

In response to the California bill, which was released before New York’s, a coalition of food industry companies wrote an opposition letter stating, “All five of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe.” A spokesperson for the National Confectioners Association, a trade organization that represents candy manufacturers, echoed this in an email to the Times, saying their members adhere to FDA guidelines.

An FDA official wrote in an email to the Times that the agency evaluates food additives based on a number of factors, including the “amount expected to be consumed (dietary exposure)” and “laboratory studies supporting safety.”

In practice, however, many chemicals are approved under a provision known as Generally Recognized As Safe, which states that a food additive can forgo review by the FDA if it has been deemed safe by “qualified experts.” If concerns arise after a chemical is already approved, or if new, relevant research becomes available, “The FDA does reevaluate the safety of ingredients,” the agency official wrote. For example, the FDA reviewed the evidence about titanium dioxide after the EU decided to ban it in 2022. The resulting report determined that there was “no evidence to suggest dietary exposure to the additive is a concern for human health.”

HOW CAN I AVOID THESE ADDITIVES?

The best way to steer clear of potentially hazardous food additives is to avoid eating prepared, processed foods and, instead, stick to fresh ingredients. If you are buying something packaged, be sure to read labels. Sathyanarayana said a good rule of thumb is to opt for foods with short ingredient lists and to skip foods with ingredients you can’t pronounce. She mentioned the preservatives butylated hydroxyanisole (BHA) and butylated hydroxytoluene (BHT), sodium nitrate and sodium nitrite, and meat with bovine growth hormone as other chemicals to try to avoid.

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